CITY OF MERCED

Meeting Agenda

City Council Chamber
Merced Civic Center
2nd Floor
678 W. 18th Street
Merced, CA 95340

City Council/Public Finance and Economic Development Authority/Parking Authority

Monday, August 3, 2026	**6:00 PM**	**City Council Chamber, 2nd Floor, Merced Civic Center, 678 W. 18th Street, Merced, CA 95340**

Closed Session at 5:00 PM/Regular Meeting at 6:00 PM

NOTICE TO PUBLIC

WELCOME TO THE MEETING OF THE MERCED CITY COUNCIL

At least 72 hours prior to each regular City Council meeting, a complete agenda packet is available for review on the City's website at www.cityofmerced.gov or at the City Clerk's Office, 678 W. 18th Street, Merced, CA 95340. All public records relating to an open session item that are distributed to a majority of the Council will be available for public inspection at the City Clerk's Office during regular business hours. Spanish and Hmong translation is available at every regular meeting. Assisted hearing devices are available for meetings held in the Council Chamber.

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PUBLIC COMMENT: OBTAIN SPEAKER CARD FROM THE CITY CLERK

Members of the audience who wish to address the City Council may submit a Request to Speak in one of the following ways:

- Complete a green Request to Speak card available at the back of the Council Chamber and submit it to the Deputy City Clerk, preferably before the item is called and/or the meeting begins.
- Scan the QR code corresponding to your preferred language (English, Hmong, or Spanish) and follow the instructions.
- Submit a Request to Speak online by visiting PublicComment.cityofmerced.gov.

Individuals participating virtually by phone must provide a valid phone number so staff can identify the caller during the meeting and must use the number they registered with to call in. Please be patient as this is a new process and there may be some disruptions or issues. Staff will do their best to ensure an efficient and transparent meeting that complies with all applicable laws.

Comments may be emailed to cityclerk@cityofmerced.gov no later than 1 PM on the day of the meeting. Please specify on which portion of the agenda you are commenting, for example, Public Hearing item #, Consent item #, or Public Comments.

Material received before the deadline will be sent to the City Council, part of the record, and mentioned as part of the Written Petitions and Communications portion of the agenda. Any emails received by the 1PM deadline will be posted on the City's website at www.cityofmerced.gov/government/city-council/council-meetings. Any correspondence received after the 1PM deadline will be distributed to the City Council and retained for the official record.

To view the official live video broadcast of the City Council meeting, visit the City's YouTube channel. For convenience, the meeting may also be viewed through the City's website at cityofmerced.gov, on Comcast Public Access Channel 96, or on AT&T U-verse Channel 99.

A. CLOSED SESSION ROLL CALL

B. CLOSED SESSION

The legislative body shall provide the public with an opportunity to address the body on any item described in Closed Session [Government Code Section 54954.3(a)].

B.1. 26-659 **SUBJECT:** CONFERENCE WITH LEGAL COUNSEL - ANTICIPATED LITIGATION Significant Exposure to Litigation: One (1) Potential Case. Pursuant to California Government Code Section Gov. Code § 54956.9(d)(2)

B.2. 26-660 **SUBJECT:** PUBLIC EMPLOYEE PERFORMANCE EVALUATION - Title: City Manager; Authority: Government Code Section 54957

C. CALL TO ORDER

C.1. Invocation - Debbie Croft, Alpha Pregnancy Health Center

C.2. Pledge of Allegiance to the Flag

D. ROLL CALL

D.1. In accordance with Government Code 54952.3, it is hereby announced that the City Council sits either simultaneously or serially as the Parking Authority, the Public Financing and Economic Development Authority, and the Successor Agency to the Redevelopment Agency. City Council members receive a monthly stipend of $500.00 by Charter for sitting as the City Council; and the Mayor receives an additional $100.00 each month as a part of the adopted budget and Resolution 2024-78. The members of the Parking Authority, the Public Financing and Economic Development Authority, and the Successor Agency to the Redevelopment Agency receive no compensation.

E. REPORT OUT OF CLOSED SESSION

F. SPECIAL PRESENTATIONS

F.1. 26-630

SUBJECT: Presentation from the City of Merced Fire Department on Independence Day Holiday Response

REPORT IN BRIEF

Merced Fire Department and Merced Police Department worked together to enforce the City of Merced Ordinance on fireworks. Chief Wilson will make a brief presentation on the public inputs and enforcement results. The presentation will include a summary of response activity for the 4th of July.

G. CEREMONIAL MATTERS

G.1. 26-571

SUBJECT: Proclamation - National Health Center Week

REPORT IN BRIEF

Accepted by Yamilet Valladolid, Golden Valley Health Centers Director of Government and Community Affairs.

G.2. 26-657

SUBJECT: Certificates of Recognition to Kaden and Anthony Nance, Requested by Mayor Serratto

REPORT IN BRIEF

Certificate of Recognition Received by Kaden and Anthony Nance.

H. WRITTEN PETITIONS AND COMMUNICATIONS

I. PUBLIC COMMENT

Members of the public who wish to speak on any matter not listed on the agenda may speak during this portion of the meeting and will be allotted 3 minutes. The Mayor may propose a further limit to the time available for all speakers at the discretion of the City Council, in order to accommodate as many speakers as possible. State law prohibits the City Council from acting at this meeting on any matter raised during the public comment period. Members of the public who wish to speak on a matter that is listed on the agenda will be called upon to speak during discussion of that item.

J. CONSENT CALENDAR

Adoption of the Consent Calendar may be made by one motion of the City Council, provided that any Council member, individual, or organization may request removal of an item from the Consent Calendar for separate consideration. If a request for removal of an item from the Consent Calendar has been received, the item will be discussed and voted on separately.

J.1. 26-535

SUBJECT: Reading by Title of All Ordinances and Resolutions

REPORT IN BRIEF

Ordinances and Resolutions which appear on the public agenda shall be determined to have been read by title and a summary title may be read with further reading waived.

RECOMMENDATION

City Council - Adopt a motion waiving the reading of Ordinances and Resolutions, pursuant to Section 412 of the Merced City Charter.

J.2. 26-618

SUBJECT: Information Only Contracts for the Month of July 2026

REPORT IN BRIEF

Notification of awarded Non-Public Works contracts under $39,000 and of Public Works contracts under $87,278.

J.3. 26-633

SUBJECT: Information Only - Site Plan Review Committee Minutes of May 28, 2026, and July 9, 2026

RECOMMENDATION

For Information Only

J.4. 26-639

SUBJECT: Approval to Reject All Bids Received for the Re-Bid of Project No. CP220077 Merced Regional Fire Training Facility

REPORT IN BRIEF

Considers rejecting all bids received to construct the Merced Regional Fire Training Facility due to insufficient funding.

RECOMMENDATION

City Council - Adopt a motion rejecting all bids received for Project CP220077 - Merced Regional Fire Training Facility and direct staff to re-elevate the scope, funding and re-bid the project.

J.5. 26-622

SUBJECT: Approval of Services Agreement with Black Water Consulting Engineers for Development of a Former Sludge Drying Bed Closure Work Plan in the Amount not to Exceed $51,348 for the Contract Term Ending on March 31, 2027

REPORT IN BRIEF

Considers approving a services agreement with Black Water Consulting Engineers in the amount of $51,348 for development of a former sludge

drying bed closure work plan, with contract term ending on March 31, 2027.

RECOMMENDATION

City Council - Adopt a motion approving the Services Agreement with Black Water Consulting Engineers, contract term ending on March 31, 2027, in the amount not to exceed $51,348, and authorizing the City Manager to execute the necessary documents.

J.6. 26-632

SUBJECT: Approval to Purchase Three (3) 2026 Chevrolet Trailblazers in the Total Amount of $95,994.63 to Replace Vehicles E-1300 and E-1302 for the Inspection Services Division and to Replace Vehicle E-1369 for the Recycling Division and Purchase One (1) 2026 Chevrolet Colorado in the Amount of $38,779.67 as a New Vehicle for the Refuse Department from National Auto Fleet Group - Chevrolet of Watsonville

REPORT IN BRIEF

Considers approving the purchase of three (3) 2026 Chevrolet Trailblazers in the total amount of $95,994.63, and one (1) 2026 Chevrolet Colorado in the amount of $38,779.67, utilizing the cost savings government procurement program (Sourcewell). The purchase of these vehicle will replace aging equipment that will improve reliability, reduce maintenance costs, and increase efficiency in daily operations. The purchase of the new Chevrolet Colorado will aid the Refuse Department with route inspection.

RECOMMENDATION

City Council - Adopt a motion:

A. Waiving the City's competitive bidding requirement as permitted by Merced Municipal Code section 3.04.210 and authorizing the purchase to be made with a cooperative purchase agreement through Sourcewell, a government procurement program; and,

B. Approving the purchase of three (3) 2026 Chevrolet Trailblazers and one (1) 2026 Chevrolet Colorado in the total amount of $134,774.30 from National Auto Fleet Group - Chevrolet of Watsonville, through Sourcewell contract # 091521-NAF; and,

C. Authorizing the City Manager to execute any necessary documents for the purchase specified above; and,

D. Authorizing the issuance of the Purchase Order(s), and approval of change orders not to exceed 10% of the total purchase price.

J.7. 26-642

SUBJECT: Approval to Purchase One (1) New Curbtender Quantum 8YD Refuse Truck, and Necessary Attachment Equipment, From Rush Truck Centers, in the Amount of $193,285.72 for the Refuse Department to Replace Vehicle E-1291

REPORT IN BRIEF

Considers approving the purchase of one 2027 Curbtender Quantum 8YD Refuse Rear Loader in the amount of $193,285.72 utilizing the cost savings government procurement program (Sourcewell). The purchase of the new vehicle will increase collection efficiency, improve reliability, reduce maintenance costs, and increase efficiency in daily operations.

RECOMMENDATION

City Council - Adopt a motion:

A. Waiving the City's competitive bidding requirement as permitted by Merced Municipal Code section 3.04.210 and authorizing the purchase to be made with a cooperative purchase agreement through Sourcewell, a government procurement program; and,

B. Approving the purchase of one 2027 Curbtender Quantum 8YD Refuse Rear Loader in the amount of $193,285.72 from Rush Truck Centers, through Sourcewell contract # 032824-RTG; and,

C. Authorizing the City Manager to execute any necessary documents for the purchase specified above; and,

D. Authorizing the issuance of the Purchase Order, and approval of change orders not to exceed 10% of the total purchase price.

J.8. 26-643

SUBJECT: Approval to Purchase One (1) 2027 PBLDB-10 Dump Truck for $234,269.98 for the Street Division as a New Acquisition from PB Loader, and One (1) MDD5-6 Dump Truck for $178,795.55 for the Wastewater Treatment Plant to Replace E-1179, with all Necessary Attachment Equipment, from Altec Industries, Inc

REPORT IN BRIEF

Considers approving the purchase of one (1) 2027 PBLDB-10 Dump Truck for $234,269.98, and one (1) MDD5-6 Dump Truck for $178,795.55 utilizing the cost savings government procurement program (Sourcewell). This purchase was included in the FY 26/27 adopted budget as a vehicle replacement for the Street Division.

RECOMMENDATION

City Council - Adopt a motion:

A. Waiving the City's competitive bidding requirement as permitted by Merced Municipal Code section 3.04.210 and authorizing the purchase to be made with a cooperative purchase agreement through Sourcewell, a government procurement program; and,

B. Approving the purchase of one (1) 2027 PBLDB-10 Dump Truck for $234,269.98 from PB Loader, through Sourcewell Contract # 050625-PBL, and one (1) MDD5-6 Dump Truck for $178,795.55 from Altec Industries, Inc., through Sourcewell Altec Industries, Inc. Contract # 110421-ALT; and,

C. Authorizing the City Manager to execute any necessary documents for the purchase specified above; and,

D. Authorizing the issuance of the Purchase Order and approval of change orders not to exceed 10% of the total purchase price.

J.9. 26-645

SUBJECT: Approval to Purchase One (1) New Front Loader Refuse Truck, and Necessary Attachment Equipment, From Interstate Truck Center - Valley Peterbilt, in the Amount of $394,219.35 for the Refuse Department to Replace E-1425

REPORT IN BRIEF

Considers approving the purchase of one 2027 Peterbilt 520 truck with NewWay Mammoth Front End Loader body in the amount of $394,219.35 utilizing the cost savings government procurement program (Sourcewell). The purchase of the new vehicle will replace aging equipment that will improve reliability, reduce maintenance costs, and increase efficiency in daily operations.

RECOMMENDATION

City Council - Adopt a motion:

A. Waiving the City's competitive bidding requirement as permitted by Merced Municipal Code section 3.04.210 and authorizing the purchase to be made with a cooperative purchase agreement through Sourcewell, a government procurement program; and,

B. Approving the purchase of one 2027 Peterbilt 520 truck with NewWay Mammoth Front End Loader body in the amount of $394,219.35 from Interstate Truck Center - Valley Peterbilt, through Sourcewell contract # 032824-PMC; and,

C. Authorizing the City Manager to execute any necessary documents for the purchase specified above; and,

D. Authorizing the issuance of the Purchase Order, and approval of change orders not to exceed 10% of the total purchase price.

J.10. 26-648

SUBJECT: Approval of Professional Services Agreement with Vetcor of Merced, LP dba Valley Animal Hospital for Veterinary Services

REPORT IN BRIEF

Considers approving a Professional Services Agreement with Vetcor of Merced, LP, doing business as Valley Animal Hospital, to provide veterinary services for Animal Control operations and Police Department K9s through July 31, 2029. The agreement formalizes the City's longstanding relationship with Valley Animal Hospital, establishes the scope of services, and updates the reimbursement limit for Animal Control cases from $250 to $400 per case to reflect increased veterinary costs.

RECOMMENDATION

City Council - Adopt a motion:

A. Approving a Professional Services Agreement with Vetcor of Merced, LP dba Valley Animal Hospital for veterinary services through July 31, 2029; and,

B. Authorizing the City Manager, or designee, to execute the agreement and any documents necessary to implement its provisions.

J.11. 26-646

SUBJECT: Second Reading and Final Adoption of a Zoning Ordinance Amendment to Complete the Regional Housing Needs Allocation Requirements for Compliance with the State Housing Laws

REPORT IN BRIEF

Second reading and Final Adoption of a Zoning Ordinance Amendment to comply with State Housing Laws.

RECOMMENDATION

City Council - Adopt a motion adopting **Ordinance 2594,** an Ordinance of the City Council of the City of Merced, California, Amending Ordinance No. 2577, and adopting environmental review #26-0068 (Statutory Exemption).

K. ACTION ITEMS

K.1. 26-641

SUBJECT: Adoption of a Resolution Calling a November 3, 2026, General Municipal Election for the Purpose of Placing a Measure on the Ballot Known as the City of Merced Vital Services Protection Measure Establishing a 1¢ Sales Tax, Until Ended by Voters, and Requesting the County Board of Supervisors to Consolidate the City's Election with the Statewide General Election Being Held on the Same Date

REPORT IN BRIEF

Considers adopting a Resolution Calling a November 3, 2026, General Municipal Election for the purpose of placing a measure on the ballot known as the City of Merced Vital Services Protection measure establishing a 1¢ sales tax, until ended by voters, and requesting the County Board of Supervisors to consolidate the City's election with the Statewide General Election being held on the same date.

RECOMMENDATION

City Council - Adopt a motion:

A. Approving **Resolution 2026-52,** a Resolution of the City Council of the City of Merced, California, Approving an Ordinance and Ordering that a Measure be Submitted to the Voters of the City at the General Municipal Election to be held on November 3, 2026, to Consider a Local 1¢ (1%) General Transactions and Use Tax to be Administered by the California Department of Tax and Fee Administration; and,

B. Approving the form and ballot question; and,

C. Directing the City Manager/City Clerk and the City Attorney's Office to prepare and execute documents appropriate to carry out the tasks necessary for the General Municipal Election and to take actions related thereto.

K.2. 26-647

SUBJECT: Adopt Resolution 2026-48 Approving the First Amendment to the Property Tax Sharing Agreement with the County of Merced

REPORT IN BRIEF

Considers adopting a Resolution approving the First Amendment to the Property Tax Sharing Agreement with the County of Merced. The First Amendment extends the term of the Agreement for three (3) additional years, with all remaining terms and conditions remaining unchanged.

RECOMMENDATION

City Council - Adopt a motion adopting **Resolution 2026-48**, a Resolution of the City Council of the City of Merced, California, Approving the First Amendment to the Property Tax Sharing Agreement with the County of Merced, Dated August 16, 2016.

K.3. 26-591

SUBJECT: Approve the Police Department to Apply for the United States Department of Justice (USDOJ) Community Oriented Policing Services (COPS) Fiscal Year 2026 Law Enforcement Mental Health and Wellness Act Program Grant to Expand Existing Health and Wellness Programs not to Exceed $250,000 and Approve to Accept the Grant Award When Offered

REPORT IN BRIEF

Considers Staff's request to apply for the USDOJ COPS Fiscal Year 2026 Law Enforcement Mental Health and Wellness Act Program grant and accept the grant funding when awarded

RECOMMENDATION

City Council - Adopt a motion:

A. Adopting **Resolution 2026-47**, a Resolution of the City Council of the City of Merced, California approving the grant application and accepting the grant award from the US Department of Justice, Community Oriented Policing Services; and,

When Awarded,

B. Authorizing the acceptance of the USDOJ COPS Fiscal Year 2026 Law Enforcement Mental Health and Wellness Act Program grant not to exceed $250,000; and,

C. Authorizing the Finance Officer to make necessary budget adjustments; and,

D. Authorizing the use of pooled cash to cover the appropriation until grant

funds are reimbursed; and,

E. Authorizing the City Manager to execute the USDOJ COPS Fiscal Year 2026 Law Enforcement Mental Health and Wellness Act Program Grant Award Agreement and any related documents.

K.4. 26-354

SUBJECT: Approval of Amendments No. 1 to the Measure V Regional Project Funding Agreement with Merced County Association of Governments to Receive Measure V Funds for the Highway 59 Widening Phase 1 Project CP200064 (Agreement No. 20180913SD L-1) and Highway 59 Black Rascal Bridge Project CP200065 (Agreement No. 20180913SD-1)

REPORT IN BRIEF

Consider approving Amendments No. 1 to the Measure V Regional Funding Agreement with Merced County Association of Governments to receive Measure V Regional funds for the Highway 59 Widening Phase 1 Project CP200064 and Highway 59 Black Rascal Bridge Project CP200065 to continue with design, commence with right-of-way acquisition, and prepare for bidding the project for construction.

RECOMMENDATION

City Council - Adopt a motion:

A. Approving Amendment No. 1 to the Measure V Regional Funding Agreement for the Highway 59 Widening Phase 1 Project CP200064, with Merced County Association of Governments; and,

B. Approving Amendment No. 1 to the Measure V Regional Funding Agreement for the Highway 59 Black Rascal Bridge Project CP200065, with Merced County Association of Governments; and,

C. Authorizing the use of pooled cash for expenditures until City receives reimbursement funds; and,

D. Authorizing the Finance Officer to make the necessary budget adjustments; and,

E. Authorizing the City Manager to execute the necessary documents.

K.5. 26-624

SUBJECT: Adoption of a Resolution Accepting $246,000 in Post-Programming Congestion Mitigation and Air Quality Improvement (CMAQ) Carryover Apportionment Funds for Project No. CP220066 -

Merced Traffic Signal Synchronization

REPORT IN BRIEF

Considers adopting a resolution accepting $246,000 in Post-Programming Congestion Mitigation and Air Quality Improvement (CMAQ) Carryover Apportionment funds to supplement construction funding for the Merced Traffic Signal Synchronization Project along R Street, M Street, G Street, Yosemite Avenue, and Olive Avenue.

RECOMMENDATION

City Council - Adopt a motion:

A. Adopting **Resolution 2026-49,** A Resolution of the City Council of the City of Merced, California, Accepting Post-Programming CMAQ Carryover Apportionment Funds in the Amount of $246,000 and Authorizing Related Budget Adjustments; and,

B. Approving a budget amendment increasing revenue in Fund 5005-Street and Signal CIP in the amount of $246,000 and appropriating the same to Project No. CP220066 for costs associated with the construction costs of traffic signal synchronization; and,

C. Approving the use of pooled cash until reimbursement is received from the grant; and,

D. Authorizing the City Manager to execute the necessary documents.

K.6. 26-649

SUBJECT: Approval of Arts and Culture Advisory Commission's Recommended 250th Commemorative Mural Art Project

REPORT IN BRIEF

Considers the Arts and Culture Advisory Commission's (ACAC) recommended 250th Commemorative Mural Art Project to be installed on an exterior wall of the City of Merced Public Works Corp Yard facing West Avenue with expenditures not to exceed $15,000.00.

RECOMMENDATION

City Council - Adopt a motion approving the ACAC's recommended 250th Commemorative Mural art project to be installed on an exterior wall of the City of Merced Public Works Corp Yard facing West Avenue and expenditures not to exceed $15,000.00.

K.7. 26-650

SUBJECT: Approval of Arts and Culture Advisory Commission's

Recommended Remaining Public Art Projects

REPORT IN BRIEF

Considers the Arts and Culture Advisory Commission's (ACAC) recommended remaining public art projects from the 2026/27 budget.

RECOMMENDATION

City Council - Adopt a motion approving the ACAC's recommendations for remaining art projects from the 2026/27 budget which include, $13,000 for programmed events at Bob Hart Square, $10,000 for a splash pad mural at Stephen Leonard Park, and $20,000 for the Utility Box Refresh Project.

L. BUSINESS

L.1. 26-644

SUBJECT: Request to Remove a Member of the Personnel Board and Appointment to the Personnel Board to Appoint One Employee Nominated Individual

REPORT IN BRIEF

Considers removing a Personnel Board member due to violating the attendance policy and appointing one Employee nominated individual to the Personnel Board.

RECOMMENDATION

City Council - Adopt a motion:

A. Removing Jessica Fernandez as the Employee Appointed Personnel Board Member; and,

B. Appointing Pamela Toconis to serve as the Employee Nominated member for the Personnel Board with a partial term expiring on July 1, 2027, respectively.

L.2. 26-631

SUBJECT: Annual Appointments to the Bicycle and Pedestrian Advisory Commission (District 5, District 6, and One Ex-Officio)

REPORT IN BRIEF

Accept nominations to fill vacancies on the Bicycle and Pedestrian Advisory Commission.

RECOMMENDATION

City Council - Adopt a motion:

A. Accepting nominations and appointing individuals to serve as members of the Bicycle and Pedestrian Advisory Commission (District 5, District 6, and One Ex-Officio); or,

B. Accepting nominations and appointing as many members as Council sees appropriate and directing staff to continue the recruitment of applicants.

L.3. 26-638

SUBJECT: Reappointment of Robert Tyler as the Citizens' Oversight Committee - Measure V City Representative

REPORT IN BRIEF

Nomination for reappointment to the Measure V Transportation Expenditure Plan - Citizens Oversight Committee.

RECOMMENDATION

City Council - Adopt a motion nominating Robert Tyler for reappointment to the City of Merced seat on the Citizens' Oversight - Measure V Committee.

L.4. 26-536

SUBJECT: Request to Add Item to Future Agenda

REPORT IN BRIEF

Provides members of the City Council to request that an item be placed on a future City Council agenda for initial consideration by the City Council.

L.5. 26-537

SUBJECT: City Council Comments

REPORT IN BRIEF

Provides an opportunity for the Mayor and/or Council Member(s) to make a brief announcement on any activity(ies) she/he has attended on behalf of the City and to make a brief announcement on future community events and/or activities. The Brown Act does not allow discussion or action by the legislative body under this section.

M. ADJOURNMENT